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In Fali S. Nariman's death, India has lost its conscience-keeper

By Faizan Mustafa

The light has gone out of the legal fraternity's lives. In the death of eminent jurist Fali S. Nariman on February 21, India has lost one of its greatest conscience-keepers. I had invited him for an event at KIIT School of Law in Bhubaneswar, Odisha, in 2008. When one of the speakers went on and on, Nariman asked me to slip him a note with 'KIS I' written on it. Not understanding, I looked at him in confusion and he told me the speaker is to be told: "Keep it short, Idiot". Nariman also wrote a personal letter to me on August 18 last year, appreciating an article I had written for *The Indian Express*, and asked me to write a book. There is probably no lawyer, no teacher of law in India, who does not have some such anecdote to narrate about the late jurist. India's legal narrative cannot be written without referring to Nariman.

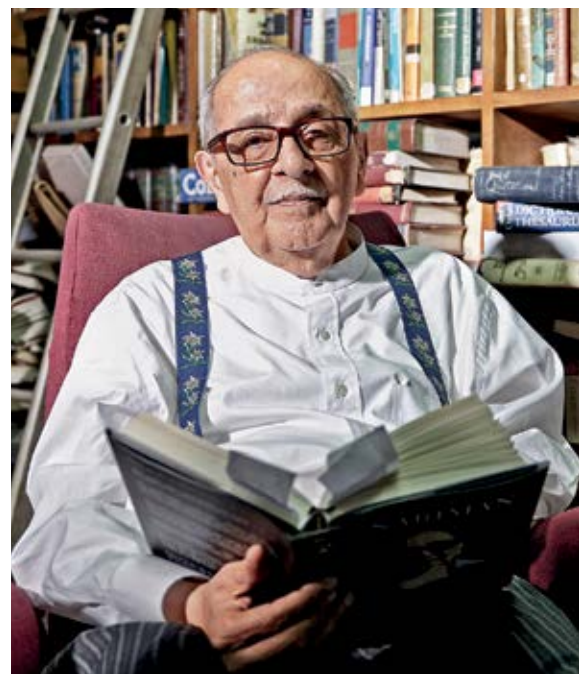
Born in Burma (now Myanmar) in 1929, Nariman joined the Bombay Bar in 1950 and dominated the legal profession for over seven decades. In 1971, he shifted to Delhi as senior Supreme Court advocate. Deeply committed to civil liberties, Nariman resigned as Additional Solicitor General of India when then Prime Minister Indira Gandhi imposed the Emergency in 1975.

Nariman appeared as a lawyer in many landmark cases in independent India, and his arguments immensely contributed to the development of the Supreme Court's jurisprudence. He was a staunch supporter of the independence of the judiciary, which he believed to be a right of the people and not a privilege of judges.

With his arguments in the *Supreme Court Advocates on Record Association vs Union of India* case, Nariman was instrumental in the formation of the collegium system of appointing judges in 1993. He was critical of the National Judicial Appointments Commission (NJAC) Act, 2014, among the first big-ticket constitutional amendments made by the Narendra Modi government during its first term. The NJAC Act was eventually struck down in 2015.

Nariman, however, spoke truth not only to the government, but also to judges. He was highly critical, for example, of the Supreme Court's 2023 verdict upholding the abrogation of Article 370, which granted special status to Kashmir. Without mincing words, the jurist said the judgment was "politically acceptable but constitutionally incorrect", and was surprised to see no dissenting opinion from the five-judge constitution bench.

FALI S. NARIMAN (1929-2024)



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Nariman also appeared in the famous Golaknath case of 1967, in which the Supreme Court had held that Parliament does not have the power to amend fundamental rights guaranteed by the Constitution. He also appeared in the T.M.A. Pai Foundation case of 2002, which led to a landmark judgment by an 11-judge bench of the Supreme Court that secured the rights of minority communities to establish and administer educational institutions.

Respected and regarded as he was, Nariman did have one regret—representing Union Carbide in the Bhopal gas tragedy case of 1984. Few lawyers and judges have shown such courage to admit their own mistakes. In Nariman's death, we have lost a courageous public intellectual, a bold dissenter and one of the last surviving moralists of our time who believed that silence may not be an option at all when democracy, judicial independence, the constitutional ethos and civil liberties are under threat. The defender of constitutional theology is no more. ■

The writer is vice-chancellor, Chanakya National Law University, Patna. Views are personal